

THE AQUACULTURE AUTHORITY OF THE PUNJAB ACT
2026
(XVIII of 2026)

CONTENTS

1. Short title, extent and commencement
2. Definitions
3. Establishment of the Authority
4. Aquaculture area
5. Composition of the Authority
6. Powers and functions of the Authority
7. Chief Executive Officer
8. Registration, licensing and certification
9. Services by the Authority
10. Employees of the Authority
11. Appointment by transfer and posting
12. Liability for loss
13. Committees
14. Directions to the Authority
15. Transfer of rights and liabilities
16. Authentication of instruments of the Authority
17. Fund
18. Accounts
19. Budget and accounts
20. Audit
21. Joint venture, outsourcing and procurements
22. Leasing of aquaculture property
23. Purchase of property
24. Power to give directions
25. Powers to remove sources of pollution

26. Enforcement
27. Enforcement procedure of the Authority
28. Power of seizure
29. Power of sealing
30. Recovery of fines
31. Appeals
32. Failure to comply with the directions
33. Powers to eject unauthorized occupants
34. Damage to aquaculture property or infrastructure
35. Obstructing the authorized officer
36. Business without registration, license or certification
37. Punishment for residuary offences
38. Punishment for subsequent offence
39. Cognizance of an offence
40. Trial of offences
41. Compounding of offence
42. Public servants
43. Indemnity
44. Annual report
45. Monitoring and Evaluation
46. Power to make rules
47. Power to frame regulations
48. Act to prevail over other laws
49. Removal of difficulties

¹THE AQUACULTURE AUTHORITY OF THE PUNJAB ACT 2026
(XVIII of 2026)

[25 February 2026]

**An
Act**

to provide for establishment of Aquaculture Authority of the Punjab.

It is necessary to establish Aquaculture Authority of the Punjab for development of aquaculture sector, facilitation of private stakeholders and regulation of aquaculture industry and market to improve food security, create employment opportunities and generate revenue in the Punjab and the matters connected therewith and ancillary thereto.

It is hereby enacted by Provincial Assembly of the Punjab as follows:

1. Short title, extent and commencement.— (1) This Act may be cited as the Aquaculture Authority of the Punjab Act 2026.

- (2) It extends to whole of the Punjab.
- (3) It shall come into force at once.

2. Definitions.— In the Act:

- (a) “Act” means the Aquaculture Authority of the Punjab Act 2026;
- (b) “Administrative Secretary” means Secretary to the Government, Aquaculture and Fisheries Department;
- (c) “Authority” means the Aquaculture Authority of the Punjab established under the Act;
- (d) “aquaculture” means culture of any species of fish, shell fish, shrimp, plant and animal in water;
- (e) “aquaculture area” means the aquaculture area notified under section 4 of the Act;
- (f) “aquaculture industry” means a business relating to aquaculture including their hatcheries, feed and feeding, harvesting, preservation, distribution and marketing, related drugs and medicine, and factories processing, manufacturing for fishing, shrimp nets and gears and establishment and operation of refrigeration units, refrigerated logistics, related markets, export and import of fish, shrimp and aquaculture related implements, chemicals and technologies and all other related services;
- (g) “biosecurity in aquaculture” means the technical methods to prevent and limit the spread of biological agents that occur, either naturally or artificially, in aquaculture activities that can cause harm to humans, animals and ecosystems;
- (h) “certification” means the certification under the Act;
- (i) “Chairperson” means the Chairperson of the Authority;

¹This Act was passed by Provincial Assembly of the Punjab on 04 February 2026; and was assented to by Governor of the Punjab on 25 February 2026; and was published in the Punjab Gazette (Extraordinary), dated: 25 February 2026, pp. 4553-4564.

- (j) “Chief Executive Officer” means the Chief Executive Officer of the Authority;
- (k) “Code” means the Code of Criminal Procedure, 1898 (V of 1898);
- (l) “District Collector” means the Collector of a District under the Punjab Land Revenue Act, 1967 (XVII of 1967);
- (m) “employee” means an employee of the Authority appointed by the Authority under the Act;
- (n) “fee” means the fee leviable under the Act;
- (o) “feed” means any type of feed used for aquaculture and includes floating feed, extruded feed, sinking feed, grower feed and stage-wise feed;
- (p) “Fund” means the Fund established under the Act;
- (q) “Government” means Government of the Punjab;
- (r) “Government Agency” includes:
 - (i) a department, bureau, commission, authority, office or unit of the Government;
 - (ii) a local government; and
 - (iii) a company or corporation owned or controlled by the Government or a local government.
- (s) “hatchery” means and includes a facility where aquatic animal eggs are hatched and larvae are reared to the post-larvae stage;
- (t) “land” includes earth, water and air, above, below or on the surface and any improvements in the structure customarily regarded as land and benefits arising out of land and things attached to earth or permanently fastened to earth;
- (u) “local government” means a local government as defined in the Punjab Local Government Act 2025 (LXXX of 2025) or any other law for the time being in force;
- (v) “Member” means a Member of the Authority;
- (w) “person” means a natural or juridical person;
- (x) “pond farming” means and refers to pond farming which involves raising aquatic animal or plant species in controlled artificial ponds under the Act;
- (y) “prescribed” means prescribed by the rules or regulations;
- (z) “regulations” means the regulations framed under the Act;
- (aa) “rules” means the rules made under the Act; and
- (bb) “standards” means the standards formulated by the Authority under the Act.

3. Establishment of the Authority.— (1) The Government may, by notification in the official Gazette, establish an Authority to be known as Aquaculture Authority of the Punjab for the purposes of the Act.

(2) The Authority shall be a body corporate, having perpetual succession and a common seal, with power to enter into a contract, acquire property with prior approval of the Government, dispose of immovable property and may, by its name, sue or be sued.

(3) The headquarters of the Authority shall be at such place and city as may be notified by the Government.

4. Aquaculture area.- The Government may, by notification in the official Gazette, declare any land with its allied infrastructure encompassing whole value chain due to its saline and brackish water or other criteria as may be prescribed by the rules, as the aquaculture area for the purposes of the Act.

5. Composition of the Authority.– (1) The Authority shall consist of the following:

(a)	Minister for Aquaculture and Fisheries.	Chairperson
(b)	Administrative Secretary.	Member
(c)	Secretary to the Government, Finance Department or his nominee not below the rank of an Additional Secretary.	Member
(d)	Secretary to the Government, Law and Parliamentary Affairs Department or his nominee not below the rank of an Additional Secretary.	Member
(e)	Secretary to the Government, Industries, Commerce and Investment Department or his nominee not below the rank of an Additional Secretary.	Member
(f)	Member (Colonies) of the Board of Revenue.	Member
(g)	nominee of the Chairman, Planning and Development Board not below the rank of a Member.	Member
(h)	Director General Fisheries, Punjab.	Member
(i)	three Members of Provincial Assembly of the Punjab, including at least one female Member to be nominated by the Chief Minister.	Members
(j)	five private members from relevant field.	Members
(k)	Chief Executive Officer.	Secretary/ Member

(2) The Members at clauses (i) and (j) shall be appointed for a term of three years, and they shall serve during the pleasure of the Chief Minister.

(3) The Chairperson and in his absence, his nominated Member shall preside over a meeting of the Authority.

(4) The Authority shall meet at least once in every quarter of a calendar year on such date and at such time as the Chairperson may determine.

(5) Seven Members shall constitute the quorum for a meeting of the Authority, and decisions shall be made by the majority of its Members present and voting, and in case of a tie, the person presiding over the meeting shall have a casting vote.

(6) The Secretary of the Authority shall maintain complete record of the minutes and decisions of the Authority in such manner as may be prescribed by the regulations.

(7) No act or proceedings of the Authority shall be invalid merely by reason of any vacancy or defect in the constitution of the Authority.

6. Powers and functions of the Authority.– (1) The Authority may perform such functions and exercise such powers as are necessary for carrying out the purposes of the Act.

- (2) Without prejudice to the generality of sub-section (1), the Authority may:
 - (a) formulate standards, procedures, processes, and issue guidelines in relation to aquaculture farming, its processing, breeding, feeding, health management and preservation or any other related field;
 - (b) plan, promote, organize, re-organize and implement programs to develop and secure the aquaculture;
 - (c) prescribe procedures and guidelines for setting up and accreditation of aquaculture laboratories;
 - (d) provide scientific advice and technical support to public and private sectors for the purposes of the Act;
 - (e) establish a network of farmers, importers and exporters of aquaculture to facilitate quality control, international marketing, transportation and export;
 - (f) encourage farmers, organize training programs and promote general awareness;
 - (g) levy fee for registration, licensing, certification and other related services;
 - (h) develop and promote aquaculture hatcheries, model farms, aquaculture feeds, feed mills, model processing plants, aquaculture malls, research and training centers, laboratories with or without private investment;
 - (i) certify aquaculture products for export as per notified standards to meet international quality standards;
 - (j) conduct studies, research, undertake surveys, prepare feasibility reports, develop and promote aquaculture markets, assess potential gaps and prepare business plans for aquaculture;
 - (k) engage a person for performances of any of its functions for effective development of aquaculture industry and related infrastructure;
 - (l) prepare annual budget and implement annual development programs in aquaculture for the aquaculture area;
 - (m) acquire property or, with the approval of the Government, dispose of its immovable property;
 - (n) raise funds through borrowing, investments, leasing of assets or any other means and its utilization in the prescribed manner;
 - (o) enter into and perform such contracts with local and international organizations, agencies or companies, including joint ventures, as may be necessary for carrying out the purposes of the Act;
 - (p) award contracts for projects or schemes to be undertaken, through the Punjab Procurement Regulatory Authority Act, 2009 (VIII of 2009), public financing or through the Punjab Public Private Partnership Act 2025 (XVII of 2025);
 - (q) levy, collect or cause to be collected fees on the use of the aquaculture facilities and such infrastructure, or such other facilities within the aquaculture area and grant concessions in respect thereof;

- (r) establish committees, offices, units, sectors and wings and delegate such powers to such committees, offices, units, sectors and wings, as are necessary for the efficient and effective performance of its functions under the Act;
- (s) perform such other functions as the Government may assign to achieve the objectives of the Act;
- (t) engage the private sector to invest in aquaculture businesses, facilitate and promote value chain components of aquaculture industry;
- (u) establish, lease and outsource the aquaculture farms, subject to sub-section (2) of section 3, and allied facilities to private sector on such terms and conditions as determined by the Authority;
- (v) establish units for seed production, grow-out, preservation, processing, distribution and marketing of aquaculture with or without private investment; and
- (w) perform such other functions as may be necessary for the purposes of the Act.

7. Chief Executive Officer.— (1) The Chief Minister may appoint the Chief Executive Officer on such terms and conditions as the Chief Minister may determine or an officer not below the rank of BS-19 may be transferred and posted from Services and General Administration Department to the said post.

(2) The person appointed by the Chief Minister under sub-section (1) shall be a whole-time employee of the Authority and governed by the terms and conditions as may be determined by the Chief Minister; however, he shall serve during the pleasure of the Chief Minister.

(3) The Chief Executive Officer shall exercise such powers as are assigned to him under the Act, delegated by the Authority or as may be prescribed by the regulations.

- (4) The Chief Executive Officer shall:
 - (a) be the Principal Accounting Officer of the Authority;
 - (b) be competent to enter into contracts on behalf of the Authority with approval of the Authority;
 - (c) conduct all meetings and make decisions related to operations, management and administration of the Authority;
 - (d) subject to the control of the Authority, be responsible for accomplishing the objectives of the Act; and
 - (e) grant, suspend or cancel the license, registration or certification under the Act:

provided that in case of cancellation of license, registration or certification, an opportunity of being heard shall be provided in person or through video link to the concerned person.

(5) Any person aggrieved of suspension or cancellation of license, registration or certification under clause (e) of sub-section (4) may, within seven days of the order file an appeal before the Appellate Committee to be notified by the Authority.

8. Registration, licensing and certification.— (1) No person shall undertake or carry on any aquaculture business or activity without registration, license or certification under the Act:

Provided that a person already carrying on aquaculture business shall, within six months of the commencement of the Act, apply for registration, license or certification.

(2) Registration shall be required for an aquaculture farm, hatchery, feed mill, processing plant, aquaculture mall, laboratory, or such other facility as may be prescribed, and shall be made once, in such manner and on payment of such fee, and subject to such terms and conditions as may be prescribed by the regulations.

(3) An aquaculture farm, hatchery, feed mill, processing plant, aquaculture mall, laboratory registered under sub-section (2) shall be required to get license for running of its business in such manner and on payment of such fee, for such period, and subject to such terms and conditions as may be prescribed by the regulations.

(4) Certification shall be required for aquaculture products intended for export or for such other purposes as may be prescribed by the regulations, and accreditation shall be required for aquaculture laboratories, and both shall be issued or granted, as the case may be, in such manner and on payment of such fee, for such period, and subject to such terms and conditions as may be prescribed by the regulations.

9. Services by the Authority.— The Authority may provide advisory, technical or such other services for any aquaculture business or activity on payment of such fee and subject to such terms and conditions as may be prescribed.

10. Employees of the Authority.— (1) The Authority may appoint such employees, experts or consultants and other staff in such manner and on such terms and conditions as may be prescribed.

(2) Subject to the terms and conditions of appointment, the Authority may, at any time, terminate the services of an employee, expert or consultant and other staff by serving thirty days' prior notice or on payment of thirty days salary in lieu of the notice.

11. Appointment by transfer and posting.— (1) The Chief Minister may, on the request of the Authority, transfer and post the services of a civil servant to the Authority, on terms and conditions which shall not be less favourable than those admissible to him immediately before his transfer and posting.

(2) The employee transferred and posted under sub-section (1) shall continue to be an employee of the Government, and shall be liable to be transferred and posted back to the Government.

12. Liability for loss.— Any person employed by or serving under the Authority charged with the administration of the affairs of the Authority or acting on behalf of the Authority or acting under a contract with the Authority, who is responsible for any loss, waste, misappropriation or misapplication of any money or property belonging to the Authority which is a direct consequence of his negligence or misconduct in the discharge of his duties, shall be liable to pay the loss suffered by the Authority, and the same loss being determined by the Authority, after giving the person concerned a reasonable opportunity of being heard.

13. Committees.— The Authority may constitute one or more committees consisting of its Members, employees and such other persons as it may deem fit and assign functions to such committees.

14. Directions to the Authority.— The Government may give general or special directions to the Authority and the Authority shall comply with such directions.

(2) The Authority shall immediately act to rectify any neglect in the performance of its functions when informed by the Government.

15. Transfer of rights and liabilities.— The Government and local governments or any other authority or agency may, for the purposes of the Act, transfer any assets, rights and liabilities in relation to the aquaculture infrastructure to the Authority on such terms and conditions as may be agreed between them.

16. Authentication of instruments of the Authority.— All orders, decisions and other instruments of the Authority shall be authenticated by the signature of the Chief Executive Officer or any other employee as authorized by the Authority.

17. Fund.— (1) There shall be a Fund to be known as the Aquaculture Authority of the Punjab Fund to be administered and controlled by the Authority in such manner as may be prescribed by the rules.

(2) The Fund shall consist of:

- (a) funds provided by the Government or the Federal Government;
- (b) loans or grants by the Government or the Federal Government;
- (c) funds obtained by the Authority under the Act;
- (d) grants and loans negotiated and raised, or otherwise obtained by the Authority under the Act;
- (e) income from fee, charges, rentals and fines collected by the Authority and from the lease or sale of the property; and
- (f) any other sums received by the Authority.

(3) The Authority shall meet all its expenses from the Fund.

18. Accounts.— The Authority may open and maintain its accounts at such scheduled banks as it may think fit with the concurrence of Finance Department of the Government.

19. Budget and accounts.— (1) The Authority shall maintain proper accounts and other records relating to its financial affairs including its income and expenditure, and its assets and liabilities in such form and manner as may be prescribed.

(2) After the conclusion of a financial year, the Authority shall, in the manner prescribed, cause to be prepared for the financial year statements of accounts of the Authority, which shall include a balance sheet and an account of income and expenditures.

(3) The Authority shall approve its annual budget for a financial year in the prescribed manner.

(4) No expenditure for which provision has not been made in the approved budget shall be incurred without prior approval of the Authority.

(5) The Authority may delegate subject to such conditions and restrictions as may be specified in the order, any of its functions to Chief Executive Officer, committee or an employee except the function to:

- (a) frame and amend regulations;
- (b) constitute a committee;

- (c) formulate standards, procedures, processes and guidelines in relation to any aspect of aquaculture sector; and
- (d) approve the annual report, annual budget and audit accounts.

20. Audit.— (1) The Auditor General of Pakistan shall annually audit the accounts of the Authority.

(2) The Government, in addition to the audit under sub-section (1), shall cause the accounts of the Authority to be annually audited by a Chartered Accountant or a firm of Chartered Accountants.

(3) The auditor appointed under sub-section (2) shall be provided such access to books, accounts and other documents as may be considered necessary for the audit of accounts.

(4) The auditor shall submit the annual or any special audit report to the Authority, and the Authority under intimation to the Government shall take appropriate remedial or other action in light of the audit report.

21. Joint venture, outsourcing and procurements.— (1) The Authority may enter into any joint venture agreement as a partner with any person or any national or international organization to manage, develop, maintain, build and, subject to sub-section (2) of section 3, transfer any aquaculture farm, facilities including breeding, harvesting, marketing, processing, also including land, plot, estate or property vested in the Authority.

(2) The Authority may outsource any of its activities including development works through the Punjab Public Private Partnership Act 2025 (XVII of 2025) or Punjab Procurement Regulatory Authority Act, 2009 (VIII of 2009).

22. Leasing of aquaculture property.— The Authority may lease out any aquaculture farm, hatchery, feed mill, processing plant and aquaculture mall, or any other facility or aquaculture resource, in such manner and subject to such terms and conditions, as may be prescribed.

23. Purchase of property.— The Authority may purchase any land, building, aquaculture farm or any other property by entering into an agreement with any person legally competent to sell such property or enter into joint venture agreement for the development of such property or any other site, project, building and scheme, not contrary to the applicable laws.

24. Power to give directions.— (1) The Authority may require a Government Department or entity, within whose jurisdiction any particular locality or aspect of development covered by a project lies:

- (a) to execute a project in consultation with the Authority;
- (b) to take over and maintain any of the works and services in that area;
- (c) to provide any amenity in relation to the land which in the opinion of the Authority ought to be provided; and
- (d) to enforce regulations on behalf of the Authority.

(2) The expenditures incurred on the execution of any project or on the taking over or maintenance of any work, or the enforcement of regulations, under this section, shall be borne as may be agreed to between the Authority and the Government Department or entity and in the event of disagreement, as may be determined by the Government.

25. Powers to remove sources of pollution.— The Authority shall have powers to undertake improvements of the environment of the aquaculture area or any part thereof, and to check, replace, eliminate, remove, demolish, conserve, resettle or relocate the sources of environmental pollution within such area.

26. Enforcement.— (1) The Authority shall devise and implement enforcement plans regarding the observance of the rules, regulations in relation to standards, procedures, processes and guidelines related to aquaculture and may pass appropriate orders in this regard.

(2) The Authority may appoint officers for the implementation of the enforcement plans, in such manner as may be prescribed.

(3) The officers appointed under sub-section (2) shall exercise such powers, in such manners and to such extent, as may be prescribed.

27. Enforcement procedure of the Authority.— On the information received from any source, the officer appointed under section 26 by the Authority, subject to serving a show cause notice and recording reasons in writing, may:

- (a) impose fine on the aquaculture business operator which may extend to one million rupees but not less than fifty thousand rupees;
- (b) recommend suspension or cancellation of license granted under the Act; and
- (c) get registered first information report in the local Police Station.

28. Power of seizure.— (1) An officer, other than the Chief Executive Officer, authorized by the Authority may seize any vehicle, apparatus or other thing which appears to the officer to be used in contravention of the Act.

(2) The officer shall prepare a statement describing the vehicle, apparatus or other thing seized and shall deliver a copy of the statement to the person from whom it is seized.

(3) A person aggrieved by the seizure under sub-section (1), within seven days of such seizure, may file an appeal before the Chief Executive Officer.

(4) If the Chief Executive Officer confirms the seizure of the vehicle, apparatus or other thing, it shall stand forfeited to the Authority.

29. Power of sealing.— (1) An officer, below the level of Chief Executive Officer, authorized by the Authority may, wherever it is necessary for the purposes of the Act, and at all reasonable times, enter upon any land or premises and make inspection, valuation or enquiry and if he finds sufficient reasons to believe that any business or activity is being carried out in violation of the Act, he may seal the premises or property.

(2) The authorized officer shall not enter any boundary wall or any enclosed courtyard or garden attached to a dwelling house, except with the consent of the occupant and for obtaining such consent, at least twenty-four hours' notice in writing of his intention to do so, has been given to the occupants.

(3) Any person aggrieved by the order of sealing may, within seven days of such sealing, file an appeal before the Chief Executive Officer.

30. Recovery of fines.— (1) The Authority shall recover the fine, fee or any other amount, imposed or levied under the Act, as an arrears of land revenue and for the purpose, authorize an officer to exercise the powers of District Collector.

(2) The fine imposed or the fee charged under the Act, the rules or the regulations shall be deposited with the Authority and shall form part of the Fund.

31. Appeals.— (1) Any person aggrieved by an order passed by the authorized officer under the Act, may prefer an appeal to the Chief Executive Officer of the Authority within seven days from the date of such order, who shall decide the appeal after affording an opportunity of personal hearing or through video link to the parties, as follows:

- (a) accept the appeal and set aside the order passed by the authorized officer; or
- (b) modify the order passed by the authorized officer; or
- (c) uphold the order passed by the authorized officer.

(2) Any person aggrieved from the order passed under sub section (1) may file second appeal before the appellate committee to be notified by the Authority, within seven days from the date of such order, after affording an opportunity for personal hearing to the parties in person or through video link and that appellate committee may:

- (a) accept the appeal and set aside the order passed under sub-section (1); or
- (b) modify the order passed under sub-section (1); or
- (c) uphold the order passed under sub-section (1).

(3) In case, aggrieved person chooses to appear for personal hearing through video link, the video link shall be organized by the concerned authorized officer in his office, where the aggrieved person shall appear to join the video link.

32. Failure to comply with the directions.— If any person, without reasonable cause, fails to comply with any order issued by the Authority or its authorized officer, shall be liable to imprisonment for a term which may extend to one year but not less than three months or with fine which may extend to one million rupees but not less to five hundred thousand rupees or both.

33. Powers to eject unauthorized occupants.— (1) The Authority may summarily eject or dispossess any unauthorized occupant of any part of the infrastructure or a proposed project site thereof and remove any structure thereon, and may use such legal force, including Police or Punjab Enforcement and Regulatory Authority, as may be necessary for the purpose of ejection or dispossession and to recover the cost thereof from such unauthorized occupant under the applicable laws.

(2) Any person resisting against the action under sub-section (1) shall be punishable with imprisonment which may extend to five years but not less than three years and with fine up to ten million rupees but not less than one million rupees.

34. Damage to aquaculture property or infrastructure.— (1) Any person who willfully causes damage, or allows damage to be caused to any property which vests in, or managed by the Authority, or which is to be acquired by the Authority, or unlawfully converts it to his own or any other person's use, shall be punished with imprisonment for a term which may extend to seven years but not less than three years and with fine which may extend to ten million rupees but not less than one million rupees.

(2) Any person who discharges any dangerous chemical, inflammable, hazardous or offensive substance in any drain, or sewer, water course or public land vested in, managed, or controlled by the Authority in such manner as causes or is likely to cause danger to the aquaculture or related infrastructure, or obstructs or tampers

with any way, street, drain or sewer pipe or pavement or tampers with any pipe, apparatus or appliance for the supply of water or sewerage system or lays out a drain or alters any drain earmarked for aquaculture infrastructure, shall be liable to imprisonment for a term which may extend to seven years but not less than three years and with fine which may extend to ten million rupees but not less than one million rupees.

(3) The damage or loss incurred by the Authority due to offences committed by the offender under sub-sections (1) and (2) shall be recovered from the offender at the rate determined by the authorized officer of Authority and in case, the offender refuses to pay such damage or loss, he shall be subject to imprisonment for a minimum period of one year in addition to any other punishment imposed upon him under the Act.

35. Obstructing the authorized officer.— (1) Any person, who obstructs an authorized officer in the performance of his duties, shall be liable to imprisonment, for a term which may extend to one year but not less than six months and with fine which may extend to one million rupees but not less than five hundred thousand rupees.

(2) Any person, who unlawfully removes, alters or interferes, in any manner with any equipment or vehicle seized or any premises or property sealed under the Act, shall be liable to imprisonment for a term which may extend to one year but not less than six months and with fine which may extend to one million rupees but not less than five hundred thousand rupees.

36. Business without registration, license or certification.— If any person carries out aquaculture business or activity without registration, license or certification under the Act and in violation of the provisions of the Act, shall be liable to imprisonment for a term which may extend to three years but not less than one year and with fine which may extend to three million rupees but not less than one million rupees.

37. Punishment for residuary offences.— Any provision of the Act for the contravention of which no specific penalty is provided shall be punishable with imprisonment for a term which may extend to two years but not less than one year and with fine which may extend to one million rupees but not less than five hundred thousand rupees.

38. Punishment for subsequent offence.— If any person, after having been previously convicted of an offence under the Act, subsequently commits the same offence under the Act, he shall be punished with double of the maximum imprisonment and double of the maximum fine provided for such offence under the Act.

39. Cognizance of an offence.— (1) Subject to sub-section (2), an offence under the Act shall be cognizable and bailable.

(2) An offence punishable under sections 33, 34 and 38 of the Act shall be non-bailable.

40. Trial of offences.— (1) Notwithstanding anything contained in the Code, but subject to sub-section (3), the court may summarily try an offence punishable under the Act.

(2) If the court is of the opinion that the nature of the offence does not justify summary trial, it may conduct proceedings in accordance with provisions of Chapter XX of the Code.

(3) An offence punishable under the Act shall be tried by a Magistrate appointed under section 30 of the Code.

41. Compounding of offence.— The Authority may by an order empower any of its employee to compound an offence under the Act except offence under section 38 of the Act, at any stage on such terms and conditions and value of compensation, as may be prescribed.

42. Public servants.— The Chairperson, Members, employees, experts and consultants of the Authority shall, when acting or purporting to act in pursuance of any of the provisions of the Act, be deemed to be public servants within the meaning of section 21 of the Pakistan Penal Code, 1860 (XLV of 1860).

43. Indemnity.— No suit, prosecution or any other legal proceedings shall lie against the Authority, Chairperson, Chief Executive Officer, any Member, employee, expert or consultant of the Authority in respect of anything done or intended to be done in good faith, under the Act.

44. Annual report.— (1) The Authority shall, within three months of the close of a financial year, submit to the Government an annual performance report.

(2) The annual performance report shall consist of:

- (a) the statement of accounts and audit reports of the Authority;
- (b) a comprehensive statement of the work and activities of the Authority during the preceding financial year and its proposed projects and schemes; and
- (c) such other matters as may be prescribed or as the Authority may consider appropriate.

(3) The Government shall, within three months of the receipt of the annual report from the Authority, cause it to be laid in Provincial Assembly of the Punjab.

45. Monitoring and Evaluation.— (1) The Government shall, at least once in a year, conduct or cause to be conducted, the performance audit of the Authority to assess and evaluate the performance of the Authority in accomplishing the objectives of the Act.

(2) The Government may, on the basis of the performance audit, issue such directions to the Authority, as may be necessary, for accomplishing the objectives of the Act and the Authority shall implement such directions.

46. Power to make rules.— The Government may, by notification in the official Gazette, make rules for carrying out the purposes of the Act.

47. Power to frame regulations.— (1) Subject to the Act, the Authority may, by notification, frame regulations to give effect to the provisions of the Act.

(2) Without prejudice to the generality of sub-section (1), the regulations may provide for:

- (a) procedure for transaction of business of the Authority;
- (b) terms and conditions of service of the employees of the Authority;
- (c) standards and guidelines in relation to any aquaculture business or activity;
- (d) limits of additives, contaminants, toxic substance, heavy metals pesticides, veterinary drugs, residues and related matters in the aquaculture;
- (e) marking, packaging, labelling, advertising and warranty of aquaculture products;

- (f) registration, licensing and certification procedures;
- (g) inspection of aquaculture business, safe and hygienic storage and transportation;
- (h) recognition and accreditation of laboratories and scale of fee for a laboratory test;
- (i) search of premises, vehicle or person for taking and handling samples of any aquaculture product;
- (j) finances, accounts, budget and reporting procedures;
- (k) procedure for appointment of the employees of the Authority; and
- (l) delegation of financial powers.

48. Act to prevail over other laws.— In the event of any conflict or inconsistency between the provisions of the Act and the provisions of any other law, the provisions of the Act shall prevail to the extent of such inconsistency or conflict.

49. Removal of difficulties.— If any difficulty arises in giving effect to any provision of the Act, the Government, at any time, may make such orders or give such directions as are necessary to achieve the purposes of the Act.
